

Request For Information (RFI) - Made in America Market Research Hub		
Question Number	Questions/Comments	Government Response
1	Which statutory definitions must the system support? - Buy American Act - BABA (Infrastructure law) - Trade Agreements Act - Domestic defense sourcing rules	The Made in America Market Research Hub (“Hub” or “system”) should enable access to data regarding products meeting applicable standards under a range of “Made America laws” across federal procurement and financial assistance. The system must support key statutory and regulatory definitions for domestic preference statutes, including those under the Buy American Act of 1933 applicable to procurement contracts; the Build America, Buy America Act (BABA) of 2021 applicable to infrastructure grants; and other relevant “Buy American” laws, “Buy America” laws, and “Made in America” laws. We seek industry views on how best to flexibly incorporate relevant definitions, standards, and any additional supporting information that may apply or be useful, including how to ensure that the system can accommodate statutory or regulatory amendments to relevant definitions or standards. For information on the range of potentially applicable standards and laws, see the list of Buy America laws at IIJA 70913(b)(2),¹ the Buy America preference for infrastructure projects at IIJA 70914(a), the definition of “Buy America law” at IIJA 70916(a),² the definition of “domestic preference statute” at IIJA

¹ IIJA 70913(b)(2) list: (A) Section 313 of title 23, United States Code; (B) section 5323(j) of title 49, United States Code; (C) section 22905(a) of title 49, United States Code; (D) section 50101 of title 49, United States Code; (E) section 603 of the Federal Water Pollution Control Act (33 U.S.C. 1388); (F) section 1452(a)(4) of the Safe Drinking Water Act (42 U.S.C. 300j-12(a)(4)); (G) section 5035 of the Water Infrastructure Finance and Innovation Act of 2014 (33 U.S.C. 3914); (H) any domestic content procurement preference included in an appropriations Act; and (I) any other domestic content procurement preference in Federal law (including regulations).

² IIJA 70916(a) definition: The term “Buy America law” means: (A) section 313 of title 23, United States Code; (B) section 5323(j) of title 49, United States Code; (C) section 22905(a) of title 49, United States Code; (D) section 50101 of title 49, United States Code; and (E) any other domestic content procurement preference for an infrastructure project under the jurisdiction of the Secretary.

		70923(f), ³ the definition of “Buy American law” at IIJA 70932(1), ⁴ and the definition of “Made in America Laws” in Executive Order 14005, sec. 2(b). ⁵ Also consider relevant definitions and standards in the implementing regulations for these laws, including Part 25 of the Federal Acquisition Regulation (48 CFR part 25) and 2 CFR part 184. Such laws will be collectively referred to as “Made in America” laws in other responses.
2	Will the solution need to support multiple origin rules simultaneously?	The Hub should enable access to data regarding products meeting applicable standards under a range of “Made America laws,” such as certifications of compliance with Made in America laws from manufacturers or suppliers. See response to question # 1. Country of origin definitions, rulings, and determinations under 19 CFR part 177 (see, e.g., 19 CFR 177.22) may also be useful as secondary or supporting information for certain products. The same may be true for Trade Agreement Act data and exceptions. To the extent feasible based on available data, the system should also enable accessing data regarding products that only partially satisfy relevant standards under Made in

³ IIJA 70923(f) definition: In this section, the term “domestic preference statute” means any of the following: (1) [chapter 83 of title 41, United States Code commonly referred to as] the Buy American Act; (2) a Buy America law (as that term is defined in section 70916(a)); (3) [section 2533a of title 10, United States Code, commonly referred to as] the Berry Amendment; (4) section 604 of the American Recovery and Reinvestment Act of 2009 (6 U.S.C. 453b) (commonly referred to as the “Kissell amendment”); (5) section 2533b of title 10 (commonly referred to as the “specialty metals clause”); (6) laws requiring domestic preference for maritime transport, including the Merchant Marine Act, 1920 (Public Law 66-261), commonly known as the “Jones Act”; and (7) any other law, regulation, rule, or executive order relating to Federal financial assistance awards or Federal procurement, that requires, or provides a preference for, the purchase or acquisition of goods, products, or materials produced in the United States, including iron, steel, construction material, and manufactured goods offered in the United States.

⁴ IIJA 70932(1) definition: The term “Buy American law” means any law, regulation, Executive order, or rule relating to Federal contracts, grants, or financial assistance that requires or provides a preference for the purchase or use of goods, products, or materials mined, produced, or manufactured in the United States, including (A) chapter 83 of title 41, United States Code (commonly referred to as the “Buy American Act”); (B) section 5323(j) of title 49, United States Code; (C) section 313 of title 23, United States Code; (D) section 50101 of title 49, United States Code; (E) section 24405 of title 49, United States Code; (F) section 608 of the Federal Water Pollution Control Act (33 U.S.C. 1388); (G) section 1452(a)(4) of the Safe Drinking Water Act (42 U.S.C. 300j-12(a)(4)); (H) section 5035 of the Water Resources Reform and Development Act of 2014 (33 U.S.C. 3914); (I) section 2533a of title 10, United States Code (commonly referred to as the “Berry Amendment”); and (J) section 2533b of title 10, United States Code.

⁵ Under EO 14005, “Made in America Laws” means all statutes, regulations, rules, and Executive Orders relating to Federal financial assistance awards or Federal procurement, including those that refer to “Buy America” or “Buy American,” that require, or provide a preference for, the purchase or acquisition of goods, products, or materials produced in the United States, including iron, steel, and manufactured goods offered in the United States. Made in America Laws include laws requiring domestic preference for maritime transport, including the Merchant Marine Act of 1920 (Public Law 66-261), also known as the Jones Act.

		America laws. For example, the tool could identify whether the final manufacturing process for a product occurs domestically even if it does not meet numeric domestic content thresholds. Alternatively, the tool could indicate whether a product satisfies a numeric domestic content threshold above zero but less than the required legal standard. Data of this nature may support limiting the scope of nonavailability waivers under Made in America laws. Input is welcome on technical approaches to manage and apply these objectives effectively in a centralized tool.
3	Will the government define a standardized domestic content ontology?	Not at this time; domestic content requirements continue to be defined and applied separately under each relevant statute and implementing regulation, so the system should accommodate variations without a single standardized ontology. See response to question # 1. The government is interested in industry suggestions for flexible frameworks or tools that could help map and understand the interrelation of these definitions over time, but that is not the immediate objective.
4	Will the government require: - Self-reported manufacturer data? - Third-party verification? - AI-based probabilistic determinations?	Most implementing regulations for Made in America laws focus primarily on self-reported certifications from manufactures or suppliers, which are used to verify compliance. Such certifications would generally be the most important data source for products on the Hub. As such certifications will not always be available, the system should also be flexible to allow incorporation of additional information, such as reliable third-party information, and AI-based information or analysis. The government seeks designs that can weigh and cross-verify sources for reliability while seeking feedback on balancing these approaches to support reliable domestic sourcing decisions consistent with law.
5	What evidentiary standard is required?	Most implementing regulations for Made in America laws focus on self-reported certifications from manufactures or suppliers, which are used to verify compliance on Federally-funded projects. Such certifications would generally be the most important data source for products on the Hub. The Hub system would not make independent judgements of compliance with Made in America laws, but provide information on available data. Because certifications will not always be directly available, the system should be flexible to allow incorporation of additional data and information. The system should be designed to account for data validation and reliability. Ideally, the system

		should identify a method of validating which data sources are more reliable than others. The government will not define a separate evidentiary standard for purposes of the Hub outside of compliance standards defined in law, but the Hub system should enable access to data and reliable sources, including supplier certifications, bills of materials, and third-party audits where available. In presenting data and information, the Hub should ideally place higher weights on more trustworthy data. The government welcomes industry ideas on how to make this system effective without adding unnecessary burden or modifying compliance standards and certification methods established in law. When supplier certifications are not immediately available, additional information on the Hub may assist procurement officers for the government or award recipients in completing market research.
6	Will the government require: - Full data ownership? - Licensing rights? - Subscription-style access?	Should the USG elect to proceed in the acquisition process, the MIAO, in conjunction with the Contracting Office and General Counsel, will ascertain the applicable provisions for the Government's requirements.
7	Will proprietary commercial datasets be allowed to remain privately owned?	Should the USG elect to proceed in the acquisition process, the MIAO, in conjunction with the Contracting Office and General Counsel, will ascertain the applicable provisions for the Government's requirements.
8	Will the government allow public-private data partnerships? How frequently must datasets be updated?	Should the USG elect to proceed in the acquisition process, the MIAO, in conjunction with the Contracting Office and General Counsel, will ascertain the applicable provisions for the Government's requirements.
9	Will agencies be required to contribute data?	Agencies will be encouraged and expected to contribute relevant data where appropriate, consistent with OMB Circular No. A-137 and other guidance, to help create a comprehensive and reliable Hub. The government seeks input on how to make data-sharing easy, secure, valuable, and consistent with law for all federal participants.

10	Will the government fund ongoing operations or only build-out?	This RFI is intended to foster a clearer understanding of industry capabilities. The scope of this RFI excludes questions related to funding, the potential availability of funds, or projected timelines.
11	Will the hub become part of the formal waiver approval workflow?	The Hub is intended to be a tool to help support and inform market research as part of waiver processes, but it will not replace formal waiver approvals or determinations.
12	Could MIAO describe the typical end-to-end workflow a procurement official or grant recipient follows today when conducting market research to identify a domestic source or to support a waiver determination? Specifically, what data fields, classification systems, or identifiers do they typically begin their search with, and what sources or tools do they consult?	Currently, The U.S. Government (USG) lacks a robust mechanism for reliably identifying products that follow Made in America laws. Consequently, different agencies within the USG typically rely on issuing public notices via SAM.gov, such as sources sought, RFIs, or synopses. The scope of ensuing market research, which is contingent on factors like cost, schedule, and performance, may involve evaluating commercial availability, product attributes, salient characteristics, manufacturing and country of origin, NSN, PSC, NAICS, business size, and other relevant information obtained through various search methods.
13	Section 7 references secure handling of national security-sensitive information. Could MIAO clarify the anticipated data sensitivity levels and applicable security frameworks (e.g., FedRAMP, CMMC) that a solution would need to support at initial deployment versus in future phases?	At initial deployment, the Hub will prioritize handling non-sensitive, publicly available or, as needed, business confidential/controlled unclassified information (CUI) that allows for interagency data-sharing on a need-to-know basis under standard federal security practices. The platform should have a FedRAMP moderate baseline where applicable. Future phases may incorporate higher sensitivity levels with frameworks like CMMC for controlled unclassified information--the government requests industry inputs on scalable security approaches that balance access with protection.
14	Does MIAO anticipate a follow-on solicitation based on RFI responses, and if so, what is the expected timeline and anticipated procurement vehicle (e.g., GSA Schedule, full and open competition, OTA)?	Please note that we are not addressing inquiries about future opportunities at this time.

15	Will responses to this RFI be made publicly available, either through SAM.gov, FOIA, or any other mechanism? If so, will proprietary or competition-sensitive information marked as such by respondents be protected from disclosure?	To ensure respondent privacy, any information provided will remain confidential and will not be made public. We encourage respondents to clearly designate information as business-sensitive or proprietary to facilitate appropriate handling under the Freedom of Information Act.
16	How do you define foreign products?	Foreign products can be defined as products that do not comply with applicable Made in America laws. A product's classification as domestic or foreign may vary based on the specific Made in America law that applies to Federal funds. The government is interested in industry suggestions for flexible frameworks or tools that could help map and clearly explain the interrelation of these definitions over time, but that is not the immediate objective. For example, the tool should be able to identify whether the final manufacturing process for a product occurred in the US even if the product does not fully satisfy domestic content thresholds under applicable Made in America laws.
17	When the government indicates "Standardization" are there standards that government prefers that will enable greater integration with existing government systems and utilization by end users?	See responses to questions # 1-3 and 16
18	Does the 10 page exclude the cover page?	Yes
19	How do you define foreign products? and should there be an expectation that this definition could evolve over time?	See responses to questions # 1-3 and 16. We seek industry views on how best to flexibly incorporate these definitions, future amendments (as applicable), and any additional notes that may apply.
20	What timeline is being proposed for each of the phases in the scope?	The government's response regarding time or schedule is not presently available.

21	What data classification levels does MIAO anticipate the platform may need to support (e.g., public, sensitive but unclassified, Controlled Unclassified Information)?	At initial deployment, the hub will prioritize handling non-sensitive, publicly available or, as needed, business confidential/controlled unclassified information (CUI) that allows for interagency data-sharing on a need-to-know basis under standard federal security practices. The platform should have a FedRAMP moderate baseline where applicable. Future phases may incorporate higher sensitivity levels with frameworks like CMMC for controlled unclassified information--the government requests industry inputs on scalable security approaches that balance access with protection.
22	Is the Government anticipating that the solution would require FedRAMP authorization, or would hosting within a FedRAMP-authorized cloud environment (e.g., AWS GovCloud) be sufficient?	The government is open to exploring both options. However, the hub will prioritize handling non-sensitive, publicly available or low-sensitivity domestic content data under standard federal security practices and should have a FedRAMP moderate baseline where applicable. Future phases may incorporate higher sensitivity levels with frameworks like CMMC for controlled unclassified information--the government requests industry inputs on scalable security approaches that balance access with protection.
23	Are there expectations regarding integration with Federal identity management systems such as Login.gov or PIV/CAC authentication?	Yes, see NIST 800-63 for specifics.
24	At what level of granularity should domestic manufacturing be identified (e.g., NAICS category, PSC/FSC, commodity taxonomy, or specific product level)?	The tool should be flexible to allow for different levels of granularity for domestic manufacturing and/or content, depending on the definitions laid out in the responses to questions # 1-3, 16, and 19 above. Certifications from manufacturers or suppliers would generally be the key data source. For secondary information, the efficacy of this tool in informing buyers hinges upon its comprehensive scope, such as details on commodity taxonomy and the provenance of materials, alongside the integration of relevant classification systems including NAICS, PSC, NSN, and UPC.
25	Should the platform focus primarily on identifying manufacturers of finished products, or should it also capture upstream component suppliers and manufacturing capabilities?	At this time, the platform should focus primarily on identifying end products and their manufacturers to directly support federal procurement officers and grantees in locating compliant domestic sources for applicable Made in America law requirements, helping to reduce the need for waivers. While capturing upstream component suppliers and manufacturing capabilities could provide valuable supply chain insights in future phases, it should be secondary

		at launch. The Hub should initially prioritize immediate usability, supplier and manufacture certifications, data accuracy, and manageability. To ensure a comprehensive understanding, respondents are invited to outline their existing capabilities, offer tangible proof of concept, and to explicitly identify any information that represents a future capability.
26	Will the Government anticipate providing access to internal datasets such as historical procurement records, agency waiver submissions, or other Federal data sources as part of the effort?	Ownership of these datasets would remain with the Government, with access governed by appropriate security and usage controls.
27	Are agencies expected to contribute data into the platform, or would the solution primarily function as an external market research resource integrated with existing systems?	Agencies will be encouraged and expected to contribute relevant data where appropriate, consistent with OMB Circular No. A-137 and other guidance, to help create a comprehensive and reliable hub. While the platform will initially operate independently of existing systems, we aim to assess whether a respondent's capabilities are system-agnostic to facilitate future integration.
28	What level of supplier verification is envisioned to support defensible waiver determinations (e.g., self-reported manufacturer information, third-party validation, or Government confirmation)?	See response to question #5.
29	Will the platform need to generate or maintain traceable market research documentation suitable for acquisition file records?	Yes; especially when manufacturer or supplier certifications are not directly available, such information could be useful in completing reliable market research.
30	Does MIAO currently envision this capability as a centralized Government-operated system, a commercially provided platform integrated with existing Federal systems via APIs, or a hybrid model?	This RFI is intended to foster a clearer understanding of industry capabilities. We encourage respondents to provide as much detail about their solution interoperability, integration capability with existing Federal systems, etc., as possible.
31	How many users do you envision the Made In America Market Research Hub to require?	As stated in the RFI, the anticipated broad user base includes federal procurement officials, recipients and subrecipients of federal financial assistance (including but not limited to state and local governments), and

		MIAO and federal agency staff. We encourage respondents to this RFI to provide the maximum number of concurrent users your solution can support. The following numbers are provided as estimates only and should not be treated as confirmed information. The government envisions initial concurrent user needs of ~500 to ~2000 (primarily federal procurement officers, contracting specialists and grantees), scaling to ~5000+ over time as adoption grows across agencies. Usage should support role-based access, with licensing models that accommodate limited federal users while enabling sure external supplier contributions.
32	What timeline or deadline do you have for awarding this platform, and are there any milestone dates for each phase? What is your preferred delivery timeline?	The scope of this RFI excludes questions related to funding, the potential availability of funds, or projected timelines.
33	What rough budget estimate, or range, should be applied to these requirements?	The scope of this RFI excludes questions related to funding, the potential availability of funds, or projected timelines.
34	Is PDF format accepted?	Yes
35	Is cover page and table of content excluded from the 10 page limit?	Yes